IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

Applicant / Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/638,192
Filing Date:	April 3, 2026
Confirmation Number:	6549
Customer Number:	226458
Entity Status:	SMALL ENTITY (37 CFR § 1.27)
Title of Invention:	APPARATUS AND METHOD FOR AN ULTRA-WIDE DATA BUS ARCHITECTURE VIA PARAMETRIC ENCODING

CONDITIONAL REQUEST FOR SUSPENSION OF ACTION
(37 CFR § 1.103(a))

Mail Stop Missing Parts
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

Pursuant to 37 CFR § 1.103(a) and MPEP § 709, Applicant Reinaldo Javier Aguiar Marcano, prosecuting the above-referenced nonprovisional patent application *pro se*, hereby respectfully requests a **Six-Month Suspension of Action** for sufficient cause.

I. PROCEDURAL TIMING AND CONDITION PRECEDENT

Applicant acknowledges that under 37 CFR § 1.103(a), a suspension of action cannot be granted while a pre-examination *Notice to File Missing Parts* or *Notice of Incomplete Reply* remains outstanding.

Accordingly, this Request is submitted **conditionally**, to be held in abeyance and entered into effect **immediately upon** the Office of Patent Application Processing (OPAP) clearing the concurrently filed formalities response and advancing the application to an examining art unit.

II. SUFFICIENT CAUSE FOR SUSPENSION (MPEP § 709)

Applicant demonstrates the following sufficient cause for a six-month suspension:

1. **Active Federal Civil Rights Litigation and Physical Confinement (SDTX Civil Action No. 4:26-CV-08794):** Applicant is currently prosecuting an active federal civil rights and emergency injunctive action in the United States District Court for the Southern District of Texas (Houston Division), docketed as **Civil Action No. 4:26-cv-08794** (assigned to **U.S. District Judge Kenneth M. Hoyt; Cause: 28:1983 Civil Rights, Nature of Suit: 440**). This federal action directly challenges and seeks to enjoin an unconstitutional state-court civil arrest warrant (Capias) issued in Fort Bend County, Texas without personal service or jurisdiction. Under the continuous threat of this void warrant, Applicant has been forced into an involuntary, *de facto* physical confinement at his corporate office for over 145 consecutive days, completely stripping him of freedom of movement, preventing physical access to postal mail, restricting access to registered patent counsel, and severely incapacitating his ability to safely monitor and prosecute this patent application.
2. **Pending Emergency Federal Injunctive Relief (TRO):** On October 7, 2026, the federal court officially entered Plaintiff's Complaint (Doc. 1) and Emergency *Ex Parte* Application for a Temporary Restraining Order and Preliminary Injunction under Fed. R. Civ. P. 65 (Doc. 2). On October 8, 2026, Applicant submitted an Emergency Advisory and Request for Expedited Ruling to accelerate the federal injunction.
3. **Severe Financial Incapacitation:** The ongoing state-court asset freeze and physical confinement have subjected Applicant to a devastating financial burden. As a *pro se* Small Entity inventor prosecuting a portfolio of over 100 related defensive technologies, Applicant faces aggregate progressive extension-of-time liabilities exceeding $400,000. While Applicant has timely submitted the formalities cure and extension petition to protect this specific application today, sustaining continuous prosecution expenses across the portfolio while federal courts resolve his physical liberty is factually impossible.

A six-month suspension of action will preserve the status quo, protect this critical technology from procedural forfeiture, and provide the federal judiciary the necessary time to adjudicate the emergency TRO and restore Applicant's physical capacity to prosecute.

III. FEE PAYMENT CONFIRMATION (37 CFR § 1.17(i))

The statutory processing fee for a request for suspension under 37 CFR § 1.17(i) (Fee Code 2830, Small Entity) is **$60.00**.

FEE PAYMENT CONFIRMATION:

Applicant confirms that the required **$60.00 processing fee** (Fee Code 2830) was remitted in full concurrently herewith via Patent Center point-of-sale checkout. All statutory fee requirements for this request for suspension are fully satisfied.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/

Reinaldo Javier Aguiar Marcano
Pro Se Applicant
Mailing Address: 2302 Britton Ridge Drive, Katy, Texas 77494
Telephone: (202) 599-3979
Email: rj.aguiar@gmail.com (USPTO Account)
Email: rj.aguiar.m@gmail.com
Email: reinaldo.aguiar.marcano@isbn9781971481296.com
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